Alabama Rules of Criminal Procedure

Rule 24. Post-trial motions.

Rule 24.1. Motion for new trial.

(a) POWER OF THE COURT. When the defendant has been sentenced, the court, on motion of the defendant or on its own motion, may order a new trial.

(b) TIMELINESS. A motion for a new trial must be filed no later than thirty (30) days after sentence is pronounced. After a denial of a motion for a new trial, the previously filed notice of appeal shall be deemed to have been filed as of the date of the denial of the motion and shall include an appeal from the denial of the motion.

(c) GROUNDS. The court may grant a new trial:

(1) For the reason that the verdict is contrary to law or to the weight of the evidence; or

(2) If for any other reason the defendant has not received a fair and impartial trial.